



DRAFT FOR SETTLEMENT BY THE DIRECTOR — NOT FOR SIGNATURE IN THIS FORM

NON-DIRECTOR SERVICES AGREEMENT

CONVEYANCING SERVICES · STATUS, SCOPE AND REMUNERATION

entered into between

H ANNANDALE ATTORNEYS INC.

Registration number 2026/219692/21, a personal liability company duly incorporated in terms of the Companies Act, herein represented by **Hesca Annandale** in her capacity as Director, she being duly authorised ("**the Firm**")

AND

MARYKE DIQUE

Identity number [ID number], an adult female of
673B Skukuza Street, Faerie Glen, Pretoria, 0081 ("**the Consultant**")

1 STATUS — NOT A DIRECTOR, SHAREHOLDER OR PARTNER

- 1.1** The Firm is a personal liability company practising as a law firm under the name H Annandale Attorneys Inc. **Hesca Annandale is the sole director and the sole shareholder of the Firm**, and bears responsibility to the Firm's clients and to the Legal Practice Council for all work done in the Firm's name.
- 1.2** The Consultant holds the title of [title — see note 3] and renders conveyancing services to the Firm on the terms of this agreement.
- 1.3** The Consultant [is / is not] an admitted attorney and [is / is not] an admitted conveyancer. Where the Consultant is not an admitted conveyancer, every deed and document requiring execution by a conveyancer shall be executed by the Director or by another duly admitted conveyancer appointed by the Firm, the Consultant acting only in preparation and support of that execution and **duly assisted by the Director**.
- 1.4** **The Consultant is not a director of the Firm.** She is not appointed as a director, is not held out as a director, and shall not be appointed as a director otherwise than by a written resolution of the Firm's shareholder, which the shareholder is under no obligation to pass. Nothing in this agreement, and no length of service under it, gives rise to any expectation or entitlement to appointment as a director.
- 1.5** **The Consultant holds no shares in the Firm** and acquires none under this agreement. She has no right to subscribe for, purchase or receive any share, and no option, pre-emptive right or right of first refusal over any share, whether on the death or retirement of the shareholder or at all.
- 1.6** **No partnership is created.** Nothing in this agreement, and nothing in the conduct of the parties, constitutes or is to be construed as a partnership, joint venture, association or co-ownership. The parties record expressly that they do not carry on business in common with a view to profit, that the Consultant's remuneration is a fee for services and not a share of profit, and that neither party may hold the other out as a partner.
- 1.7** **The Consultant acquires no interest in the practice.** She has no right, title or interest in the Firm, its practice, its goodwill, its name, its clients, its work in progress, its book of fees, its trust or business account, its Fidelity Fund cover, or any asset of the Firm, and acquires none by reason of the services rendered under this agreement.
- 1.8** **No right of management.** The Consultant has no right to participate in the management of the Firm, to vote on any matter, to attend any meeting of directors or shareholders, to inspect the Firm's financial records, or to be consulted on any decision of the Firm.
- 1.9** **No claim on termination or disposal.** On termination of this agreement, and on any sale, merger, incorporation or winding-up of the Firm, the Consultant has no claim of any nature against the Firm or the Director for a share of the value of the practice, of its goodwill, of its work in progress, or of fees earned or to be earned on any matter on which she worked, beyond remuneration due to her under Annexure B up to the date of termination.
- 1.10** The Consultant is an independent contractor. Nothing in this agreement creates a contract of employment between the parties.

2 SERVICES AND SCOPE OF AUTHORITY

- 2.1** The Consultant shall render the conveyancing services set out in Annexure A, and such further services as the parties may agree in writing from time to time.
- 2.2** All work is performed in the name of the Firm, for the Firm's clients, and under the supervision and direction of the Director. The Director may at any time review, correct, withhold or reverse any work done by the Consultant.
- 2.3** The Consultant shall **not**, without the prior written authority of the Director –
- 2.3.1 hold herself out as a director, principal, partner or proprietor of the Firm, or as entitled to bind the Firm;
 - 2.3.2 hold herself out as an attorney, notary or conveyancer otherwise than in accordance with her actual admitted status as recorded in clause 1.3;
 - 2.3.3 furnish legal advice to any client in her own name, or accept instructions in her own name or for her own account;
 - 2.3.4 sign, execute or lodge any deed or document requiring execution by a conveyancer, save as permitted by clause 1.3;
 - 2.3.5 operate, draw on, or give any instruction in respect of the Firm's trust account or business account, or hold any signing power over either;
 - 2.3.6 receive, hold or deal with any money belonging to a client of the Firm, all such money being payable directly into the Firm's trust account; or
 - 2.3.7 incur any liability, make any representation or give any undertaking on behalf of the Firm.
- 2.4** The Consultant shall comply with the Legal Practice Act and the rules and Code of Conduct of the Legal Practice Council, the Financial Intelligence Centre Act, the Protection of Personal Information Act, and the Firm's own internal policies, as if she were herself bound by them.

3 FEES AND DISBURSEMENTS

- 3.1** The Firm shall pay the Consultant *[a fee of R ... per month / an hourly rate of R ... / the amounts set out in Annexure B]*, against a valid invoice rendered monthly in arrears and payable within [...] days of receipt.
- 3.2** The fee is inclusive of all costs incurred by the Consultant in rendering the services. Disbursements are recoverable only where incurred with the Director's prior written approval and supported by a voucher.
- 3.3** The Consultant is responsible for her own income tax, provisional tax and any value-added tax, and for her own contributions of whatsoever nature. The Firm makes no deduction and no contribution on her behalf.
- 3.4** The Consultant acknowledges that she is not entitled to any share of the Firm's professional fees as such, and that her remuneration is a fee for services rendered to the Firm and not a division of fees earned by the Firm from its clients.

NOTE FOR THE DIRECTOR – CLAUSE 3.4

An attorney may not share professional fees with a person who is not an admitted legal practitioner. If the Consultant is not admitted, any remuneration calculated as a percentage of conveyancing fees earned on her files is likely to fall foul of that rule, and the exposure is the Director's, not the Consultant's. Clause 3.4 is drawn to keep the arrangement on the right side of it. Please settle the fee basis in clause 3.1 with that in mind.

4 CLIENTS OF THE FIRM

- 4.1** Every client introduced to, or serviced by, the Consultant in the course of this agreement is and remains a client of the Firm. The Consultant acquires no right, title or interest in any client, client relationship, file, or the goodwill attaching to any of them.
- 4.2** All correspondence with clients, estate agents, banks, correspondents and the Deeds Office is conducted on the Firm's letterhead and from an e-mail address of the Firm. The Consultant shall not use a private e-mail address or private letterhead for the Firm's work.

5 CONFIDENTIALITY AND PERSONAL INFORMATION

- 5.1** The Consultant shall keep confidential, both during and after the termination of this agreement and without limit of time, all information of or relating to the Firm, its clients and their affairs, including file contents, client identities, fee structures, precedents, systems and passwords.
- 5.2** The Consultant is bound by legal professional privilege in respect of the Firm's clients and shall not disclose any privileged information to any person.
- 5.3** The Consultant processes personal information solely as an operator on behalf of the Firm as responsible party, strictly on the Firm's documented instructions, and shall secure it against loss, damage and unauthorised access. She shall notify the Director immediately of any compromise of personal information, so that the Firm may meet its obligations under the Protection of Personal Information Act.
- 5.4** The Consultant shall not remove any file, document, data or copy from the Firm's premises or systems except as required for the Firm's work, and shall not retain any copy after termination.

6 OWNERSHIP OF WORK, SYSTEMS AND DATA

- 6.1** All precedents, templates, letters, checklists, workflows, spreadsheets, databases, software and other materials created or developed by the Consultant in the course of rendering the services, or paid for by the Firm, vest in the Firm on creation. To the extent that any such right does not vest automatically, the Consultant hereby cedes and assigns it to the Firm.
- 6.2** Clause 6.1 applies expressly to any workflow, matter-tracking or practice-management system developed for or used in the Firm's practice, and to all data captured in it, whether developed by the Consultant, by the Firm, or by a third party at the Firm's instance.
- 6.3** The Consultant shall on termination, and at any time on demand, return to the Firm every file, document, device, key, access card, credential and copy in her possession or under her control, and shall delete any copy held on a personal device or account.

7 STANDARD OF WORK AND INDEMNITY

- 7.1** The Consultant shall render the services with the skill, care and diligence reasonably expected of a competent conveyancing practitioner, and shall meet the time periods reasonably required by the Director.
- 7.2** The Consultant shall immediately report to the Director any error, omission, missed deadline, complaint or circumstance which may give rise to a claim against the Firm, and shall not attempt to remedy or conceal it without the Director's knowledge.
- 7.3** The Consultant indemnifies the Firm against any loss, damage, claim or cost suffered by the Firm arising from her gross negligence, wilful misconduct, dishonesty, or breach of this agreement. *[Consider whether this indemnity should be capped — see note 5.]*

8 RESTRAINT AND NON-SOLICITATION

- 8.1** For a period of *[12]* months after termination, the Consultant shall not, whether for her own account or on behalf of any other person –
- 8.1.1 solicit, approach or accept conveyancing or related legal work from any person who was a client of the Firm during the *[12]* months preceding termination, or from any estate agent, agency, developer or bank which referred work to the Firm during that period;
 - 8.1.2 solicit or employ any person employed or engaged by the Firm during that period; or
 - 8.1.3 use any precedent, template, system, data or client information belonging to the Firm.
- 8.2** The restraint in clause 8.1 applies within *[the Gauteng Province]*. Each provision, period and area is severable, and if any is found unreasonable the remainder continue to apply.
- 8.3** The Consultant acknowledges that the restraint is reasonable and necessary to protect the Firm's proprietary interest in its clients, its referral relationships and its confidential information, and that she has had the opportunity to take independent advice on it.

9 DURATION AND TERMINATION

- 9.1** This agreement commences on *[date]* and continues until terminated by either party on *[30]* days' written notice.
- 9.2** The Firm may terminate this agreement with immediate effect, without notice, if the Consultant commits a material breach, acts dishonestly, brings the Firm into disrepute, or does anything which in the Director's reasonable opinion exposes the Firm to a claim or to censure by the Legal Practice Council.
- 9.3** On termination the Consultant shall hand over every file in an orderly state, with a written note of the status of each matter and of anything outstanding on it.
- 9.4** Clauses 4, 5, 6, 7 and 8 survive termination.

10 GENERAL

- 10.1** This agreement constitutes the whole agreement between the parties. No variation, cancellation or waiver is of any force unless reduced to writing and signed by both parties.
- 10.2** The Consultant may not cede, assign or delegate any right or obligation under this agreement.
- 10.3** The parties choose as their addresses for service the addresses recorded above.
- 10.4** This agreement is governed by the law of the Republic of South Africa, and the parties consent to the jurisdiction of the Magistrates' Court.
- 10.5** Each party confirms that she has read and understood this agreement, and has had the opportunity to obtain independent legal advice on it.

Signed at on this day of 20.....

For: H ANNANDALE ATTORNEYS INC.

Hesca Annandale — Director
(duly authorised)

MARYKE DIQUE

The Consultant

As witness

As witness

SCOPE OF SERVICES

- A1** This annexure records the services the Consultant renders to the Firm. It is read with clauses 2.2 and 2.3 of the agreement: every service below is rendered in the name of the Firm, under the supervision of the Director, and subject to the limits in clause 2.3.
- A2** The Consultant attends to conveyancing transfers — freehold and sectional title — and to *[deceased estate transfers / bond registrations / bond cancellations / ...]*, at the stages set out below.

STAGE 1 Opening the file	Receiving the Offer to Purchase from the agent or the parties; capturing the parties, the property and the terms; opening the matter on the Firm's systems; acknowledging the instruction to the agent, the purchaser and the seller.
STAGE 2 Due diligence on title	Obtaining the existing title deed and conducting the deeds search; examining the conditions of title, servitudes, restrictions and any interdict; diarising every suspensive condition and reporting to the Director on anything that may affect the transfer.
STAGE 3 FICA, documents and signature	Obtaining and verifying FICA documents for both parties; preparing the power of attorney to pass transfer, the parties' declarations and the transfer duty declarations; arranging and attending signature, or arranging signature through a correspondent.
STAGE 4 Transfer duty and clearances	Applying to SARS for the transfer duty receipt or exemption; applying for the rates clearance certificate and following it up with the local authority; obtaining the levy clearance and the consent to transfer from a body corporate or homeowners' association; obtaining the compliance certificates from the seller.
STAGE 5 Guarantees and funds	Requesting cancellation figures from the seller's bank; receiving and checking the guarantees against those figures; confirming receipt of the deposit into the Firm's trust account and reporting it to the Director. The Consultant does not operate the trust account.
STAGE 6 Drafting and preparation	Drawing the deed of transfer and the supporting deeds; circulating the draft to the bond attorney and the cancellation attorney and reconciling the three sets; preparing the batch for lodgement. Execution remains with the Director or another admitted conveyancer in terms of clause 1.3.
STAGE 7 Lodgement and examination	Arranging simultaneous lodgement with the bond and cancellation attorneys; monitoring the batch daily; attending to examiner's notes and to any rejection, and re-lodging where required.
STAGE 8 Registration	Arranging the registration date with the other attorneys; reporting registration to the Director, the parties and the agent on the day.
STAGE 9 Finalisation and handover	Preparing the statements of account for the Director's approval; preparing the disbursement instructions for the Director's signature; arranging delivery of the registered title deed; closing and archiving the file.

- A3** Throughout, the Consultant keeps each matter's status current on the Firm's systems, reports to the Director *[weekly]* on every live matter, and answers clients, agents, banks and correspondents on the Firm's letterhead and from a Firm e-mail address.
- A4** The Consultant uses the Firm's subscriptions and systems — **E4, SearchWorks, Lexpro** and the Firm's matter-tracking system — and no other, unless the Director agrees in writing.
- A5** For the avoidance of doubt, and without limiting clause 2.3, the following fall outside this scope: execution of any deed requiring an admitted conveyancer, save as clause 1.3 permits; operation of the trust or business account; determination or negotiation of the Firm's fees; and the acceptance of any instruction in the Consultant's own name.

ANNEXURE B
REMUNERATION

B1 The Consultant is remunerated on the basis marked below. **One basis only is to be marked;** the remaining options fall away and should be struck through and initialled by both parties.

☐ **Monthly retainer**

R [.....] per month, covering up to [.....] live matters at any one time. Matters beyond that number are charged at R [.....] each.

☐ **Hourly**

R [.....] per hour actually worked, recorded against each matter and supported by a time record rendered with the invoice.

☐ **Per matter**

R [.....] for each transfer registered. Where a matter is cancelled or lapses after work has begun, R [.....] or a pro rata portion as the Director determines.

☐ **Retainer plus matter fee**

R [.....] per month, plus R [.....] for each transfer registered above [.....] in that month.

NOTE FOR THE DIRECTOR – THE ONE OPTION TO AVOID

A basis expressed as a **percentage of the professional fee earned on the matter** has deliberately been left off this list. Where the Consultant is not an admitted legal practitioner, that is fee sharing, and the exposure is the Firm's. Each option above is a fee for services rendered to the Firm, which is not.

- B2** The Consultant renders an invoice monthly in arrears, reflecting the matters or hours to which it relates. The Firm pays it within [.....] days of receipt, into the account nominated by the Consultant in writing.
- B3** The remuneration is inclusive of the Consultant's own equipment, data, travel within [greater Pretoria] and subscriptions. Disbursements outside that are recoverable at cost, with the Director's prior written approval and a supporting voucher.
- B4** Travel to the Deeds Office, to a correspondent or to a client outside [greater Pretoria] is reimbursed at [the AA rate / R per kilometre].
- B5** The remuneration is reviewed annually, with effect from [1 March] each year. No increase is payable unless agreed in writing.
- B6** All amounts are [exclusive / inclusive] of value-added tax. Where the Consultant is a registered vendor, a valid tax invoice is required before payment.
- B7** Nothing in this annexure entitles the Consultant to any share of the Firm's professional fees, as recorded in clause 3.4 of the agreement.

For: H ANNANDALE ATTORNEYS INC.
Hesca Annandale — Director

MARYKE DIQUE
The Consultant

NOTES FOR THE DIRECTOR — NOT PART OF THE AGREEMENT

- ▶ **This is a draft, not advice.** It was prepared to give Hesca a working starting point, by someone who is not her attorney. She is the admitted practitioner and must settle it — ideally with a colleague who does employment and LPC work — before it is signed.
- ▶ **Clause 1 is the point of this agreement.** Clauses 1.4 to 1.9 record, separately and expressly, that Maryke is not a director, holds no shares, is not a partner, acquires no interest in the practice or its goodwill, has no say in management, and has no claim on termination or on a sale of the practice. In South African law a partnership can be inferred from conduct, so 1.6 is worth keeping however the rest is settled.
- ▶ **Maryke's admitted status (clause 1.3)** drives clauses 2.3.2, 2.3.4 and 3.4 and what title she may safely carry. Settle it first. **The title in clause 1.2 is deliberately blank.** A title suggesting admission — "Conveyancer", "Associate", "Attorney" — is a representation to the public and to clients, and the exposure runs to the Firm. If Maryke is unadmitted, something like "Conveyancing Consultant" or "Conveyancing Manager" is safer.
- ▶ **Contractor or employee.** This is drawn as an independent contractor agreement, on the strength of Maryke invoicing the Firm. If the reality is that she works the Firm's hours, at the Firm's premises, under the Firm's control, a court or SARS may find an employment relationship whatever the paper says — and the liability for PAYE, UIF and unfair dismissal would be the Firm's. Worth a candid look before signature.
- ▶ **The indemnity in clause 7.3** is currently uncapped. An uncapped personal indemnity is often resisted and is sometimes read down. Consider a cap, or reliance on the Firm's professional indemnity cover instead.
- ▶ **Annexure A (scope of services) and Annexure B (fees)** still need to be drafted. Say the word and I will draft both from the nine-step transfer process already prepared.